

NOTICE OF JUDICIAL NOTICE FOR PPO HEARING

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Case: 26-102221-PP, Wayne County Third Circuit Court (PPO docket)

Author: Conrad Alan Rockenhaus, Respondent (pro se)

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STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF WAYNE
FAMILY DIVISION
ADRIENNE MARJORIE ROCKENHAUS,
Petitioner,
v.
CONRAD ALAN ROCKENHAUS,
Respondent.

Case No. 26-102221-PP

Hon. Yvonna C. Abraham

NOTICE OF INTENT TO REQUEST JUDICIAL NOTICE

AT APRIL 29, 2026 HEARING

Respondent Conrad Alan Rockenhaus, appearing pro se, respectfully notifies Petitioner and this Honorable Court that at the April 29, 2026 hearing on Respondent's Motion to Terminate Personal Protection Order and Petitioner's Motion to Show Cause, Respondent will request that the Court take judicial notice pursuant to Michigan Rule of Evidence 201(b)(2) and MCL 600.2106 of the following two adjudicative facts, each of which can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned:

1. On March 6, 2026, the United States District Court for the Eastern District of Michigan entered an Order in the consolidated civil-rights action formerly docketed at 2:25-cv-12716-JMB-SJB severing Petitioner's claims from Respondent's. A certified copy of the Order (ECF No. 27) is attached as Exhibit A.
 2. On December 15, 2025, Petitioner filed in the same consolidated proceeding a 61-page motion purporting to act as Respondent's "Next Friend" under Whitmore v. Arkansas, 495 U.S. 149 (1990). A certified copy of Petitioner's Next Friend motion (ECF No. 10) is attached as Exhibit B.
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I. Scope of Request

Respondent requests judicial notice of the fact and date of these two filings only. Respondent does not request the Court to take judicial notice of, or to credit as true, any disputed factual representation contained within either filing. The fact and date of each filing are indisputably ascertainable from the federal PACER docket.

The two facts are relevant to the pending proceedings as follows:

- a. The March 6, 2026 severance order establishes the procedural posture of the consolidated federal civil-rights action during the period in which the Petition for Personal Protection Order was filed (February 19 and 20, 2026) and in the weeks

following. Respondent's Motion to Sever was filed on February 18, 2026, two days before the PPO petition, and the order granting severance was entered fourteen days after the petition.

b. The December 15, 2025 Next Friend motion establishes the factual predicate for Respondent's subsequent revocation of Petitioner's Next Friend authority, which Petitioner has characterized in her Petition for Personal Protection Order as "retaliatory public court documents." Judicial notice of the fact of that filing establishes only that there was something to revoke. It does not ask the Court to credit Petitioner's characterization of the revocation.

II. Legal Basis

Under *In re Sumpter Estate*, 166 Mich App 48, 57 (1988), and MCL 600.2106, a trial court may take judicial notice of another court's authenticated order or judgment as prima facie evidence of the facts recited therein. Certified PACER copies constitute authenticated court records for this purpose. Under MRE 201(b)(2), facts ascertainable

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from sources whose accuracy cannot reasonably be questioned are appropriate subjects of judicial notice. The Court may take judicial notice at any stage of a proceeding.

MRE 201(c), (d).

III. MRE 201(e) Notice

This Notice is provided pursuant to MRE 201(e) to afford Petitioner timely opportunity to be heard on the propriety of the request at the April 29, 2026 hearing. Respondent will renew the request orally at the hearing, referencing this pre-filed Notice.

Respectfully submitted,

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Respondent, Pro Se

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Dated: April 22, 2026

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CERTIFICATE OF SERVICE

I hereby certify that on April 22, 2026, I filed the foregoing Notice of Intent to Request Judicial Notice with the Clerk of the Third Judicial Circuit by email to ppo@3rdcc.org.

I further certify that I served a copy of the foregoing, including all exhibits, on counsel for Petitioner by First Class Mail and electronic mail as follows:

Lisa Baker, Esq.

Aldrich Legal Services, PLLC

276 S Union St

Plymouth, MI 48170

Email: lisabaker@aldrichlegalservices.com; kris@aldrichlegalservices.com

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Respondent Pro Se

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EXHIBIT A

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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION

CONRAD ROCKENHAUS,

Plaintiff,

v.

STYLIANOS AGAPIOU, et al.,

Defendants.

ADRIENNE ROCKENHAUS,

Plaintiff,

v.

STYLIANOS AGAPIOU, et al.,

Defendants.

Hon. Jane M. Beckering

Case No. 2:25-cv-12716

Hon. Jane M. Beckering

Case No. 2:25-cv-12736

ORDER

This matter is before the Court on Plaintiff Conrad Rockenhaus's Motion to Sever (ECF No. 24.) For the reasons articulated below, the motion will be granted.

In his motion to sever, Plaintiff Conrad asserts that due to various factors, including "a breakdown of the interpersonal famil[i]al framework," his claims will be prejudiced by combining them with his spouse's claims. (Id.) Giving due consideration to the motion, as well as Plaintiff Conrad's present circumstances and both Plaintiffs' individual interests, the Court finds that returning these consolidated cases to their separate statuses will promote judicial efficiency, ease of administration, and the parties' respective interests. Accordingly,

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IT IS HEREBY ORDERED that Case No. 2:25-cv-12716, Conrad Rockenhaus v. Agapiou, et al., and Case No. 2:25-cv-12736, Adrienne Rockenhaus v. Agapiou, et al., are severed, and the Clerk shall reopen Case No. 2:25-cv-12736.

IT IS FURTHER ORDERED that the Court's January 8, 2026 Order (ECF No. 105) is vacated to the extent it orders consolidation and the filing of a consolidated complaint and the Court's January 16, 2026 Order (ECF No. 20) is vacated to the extent it addresses the foregoing consolidated complaint. Both orders remain in effect as to all other matters.

Dated: March 6, 2026 /s/ Sally J. Berens
SALLY J. BERENS
U.S. Magistrate Judge

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EXHIBIT B

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